

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400546	OLIVAS VS L.E.R. LOUNGE, INC.	MOTION FOR PRELIMINARY APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Filing of FAC—apparently the Clerk’s office bounced it, as it did the proposed order.
2. No declaration from Apex.
3. Be sure the notice, objection, and exclusion forms are attached to proposed order, include description of Apex’s duties (CMO ¶ G.4.a-b, d.) Include in the proposed order that the Court has only determined that there is sufficient evidence to suggest that the settlement is fair, adequate, and reasonable, with a final determination to be made at the final approval hearing. (CMO ¶ G.5.c) Add to notice the full title and date of filing of the document to which the settlement agreement is attached and the court’s street and web addresses and the objection and opt out forms.
4. Limit PAGA release to named plaintiff and the state; perhaps add reference to *Arias v. Superior Court* (2009) 46 Cal.4th 969 (“a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. . . . Accordingly, with respect to the recovery of civil penalties, nonparty employees as well as the government are bound by the judgment in an action brought under the act”).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407382	CLAYTON VS WABASH NATIONAL CORPORATION	HEARING ON FINAL APPROVAL

Tentative Ruling: Appearances requested to discuss:

1. Confirm that release applies only to claims actually alleged in the operative complaint and not to claims that *could* have been alleged. If there are such claims, perhaps amend the complaint.
2. Revise proposed judgment to delete prohibition on offering settlement agreement in another action—perhaps add that the parties have agreed to this. Judgment, ¶ 24.
3. Select date for review of report from administrator. Judgment, ¶ 25.